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PART IV (A) — PROVINCIAL COUNCILS

Provincial Councils Notifications

WESTERN PROVINCE PROVINCIAL COUNCIL

Financial (Amendment) Statute of Western Province Provincial Council No. 01 of 2016

I, Edirisingha Arachchige Isura Dewapriya Dharmasena Perera, Chief Minister and Minister of Finance and Plan Implementation, Engineering Services, Law and Order, Local Government and Provincial Administration, Economic Promotion, Power and Energy, Environmental Affairs, Water Supply and Drainage and Tourism of the Western Province Provincial Council, hereby declare that Financial (Amendment) Statute, No. 01 of 2016 Western Province Provincial Council, do by this Order with effect from 07.09.2016 as Assent by the Honourable Governor of Western Province.

EDIRISINGHA ARACHCHIGE ISURA DEWAPRIYA DHARMASENA PERERA,
Chief Minister and Minister of Finance and Plan Implementation,
Engineering Services, Law and Order, Local Government and Provincial
Administrations, Economic Promotion, Power and Energy, Environmental Affairs,
Water Supply and Drainage and Tourism of the Western Province,
Western Province Provincial Council.

Office of the Chief Ministry,
“Shrawasthri Mandiraya”,
Colombo 7,
27th August 2016.

WESTERN PROVINCIAL FINANCE (AMENDMENT) STATUTE No. 01 OF 2016

STATUTE TO REVISE WESTERN PROVINCIAL FINANCE STATUTE No. 06 OF 1990 AMENDED BY STATUTE No. 04 OF 2014

Be it enacted by the Western Province Provincial Council of Democratic Socialist Republic of Sri Lanka :-

- | | |
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| 01. This Statute Shall be cited as the Western Provincial Finance (Amendment) Statute No. 01 of 2016 and shall come in to effect on such date assented by the Governor of Western Province. | Short Title and
Date of
enforcement |
| 02. Section 102(a) of the main statute shall be repealed hereby and the following section shall be substituted instead. | |



Revenue Incentive Fund	102	(a) A fund that shall be hereinafter referred to as “Fund” in this Section cited as “Revenue Incentive Fund” shall be established
Method for earning the Incentive		(b) An amount appropriated annually by the Western Province Provincial for the purpose of the Fund on behalf of each year shall be paid to the Fund (c) (i) Where a revenue has been earned on a statement and/or assessment made by an assessor considering the matters of conformation that the value stated in any instrument, the turnover stated in a report has been stated falsely when inspecting as per provisions of the statute ; and/or not producing reports prescribed to be presented by any statute executed by the Provincial Commissioner of Revenue ; and/or where as revenue has been collected when any tax/fee specified to be paid by a person as per provisions of any statute executed by Provincial Commissioner of Revenue has not been paid within the specified time period. Twelve point five percent (12.5%) from the revenue collected thus. (ii) Five percent from the revenue collected through fines imposed under any statute executed by the Provincial Commissioner of Revenue. Shall be credited to the Fund. (d) From the amount earned under the above mentioned percentages, the incentive for the officers shall be paid by the Fund according to a scheme formulated by the Commissioner of Revenue and approved by the Minister of Finance. (e) Provincial Commissioner of Revenue shall administer the Fund in compliance to the proper procedure of the aforementioned scheme. (f) The Commissioner, subjected to the approval of the Finance Minister shall formulate regulations as to which principles and conditions should be incentives be paid for relevant officers from the money lying at credit in the said Fund.
Payments made by the fund.		(g) Subjected to the approval of the Finance Minister, the following money and allowances shall be paid from the Fund. (i) Money required for officers' welfare in Provincial Department of Revenue ; (ii) Collective incentive allowances for all the officers of the Provincial Department of Revenue to ensure efficiency in execution of certain statute executed by the Provincial Commissioner of Revenue. (h) Be there any balance at credit in the said Fund subsequent to the payment of incentives to officers at the end of financial year, it shall be credited to the Provincial Fund.
Sinhala text to prevail in case of Inconsistency	03.	If there is an inconsistency between Sinhala, Tamil and English texts of this Statute, the Sinhala text shall prevail.